

25STCV16898 25STCV16898

County: los-angeles
Division: Civil Law and Motion
Department: 506
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Case Number: 25STCV16898 Hearing Date: September 1, 2026 Dept: 506

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

FOR THE
COUNTY OF LOS ANGELES - CENTRAL DISTRICT

LATISHA BROADWAY, et al.,

Plaintiffs,

vs.

AARON CRAIG,

Defendant.

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CASE NO.: 25STCV16898

[TENTATIVE] ORDER GRANTING MOTIONS TO COMPEL
DISCOVERY RESPONSES; CONTINUING MOTION TO DEEM RFAs ADMITTED

Dept. 506

8:30 a.m.

September 1, 2026

Plaintiffs

have served Form Interrogatories (Set One), Special Interrogatories (Set One), Requests
for Production (Set One), and Requests for Admission (Set One). Defendant Aaron Craig did not serve timely responses.

On

August 6, 2026, Plaintiffs filed motions to compel responses and motions to deem
the RFAs admitted.

MOTIONS
TO COMPEL RESPONSES

Where

a party fails to serve timely responses to discovery requests, the court may make
an order compelling responses. (Code Civ.
Proc., §§ 2030.290 [interrogatories], 2031.300 [documents]; Healthcare Consulting, Inc. v. Pacific Healthcare
Consultants (2007) 148 Cal.App.4th 390, 403.) A party that fails to serve timely responses
waives any objections to the request, including ones based on privilege or the protection
of attorney work product. (Code Civ. Proc.,
§§ 2030.290, subd. (a), 2031.300, subd. (a).)

Defendant

filed no oppositions to these motions and did not serve timely responses.

Accordingly,

the motions are GRANTED.

Defendant

Aaron Craig is ordered to provide verified responses, without objections, to Form Interrogatories (Set One), Special Interrogatories (Set One), and Requests for Production (Set One) within 45 days.

The

requests for sanctions are granted in part.

Defendant is ordered to pay total sanctions of \$1,500.00 to Plaintiffs within 45 days.

MOTION

TO DEEM RFAs ADMITTED

When

a party fails to timely respond to a request for admission, the propounding party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted. (Code Civ. Proc., § 2033.280, subd. (b).) The party who failed to respond waives any objections

to the demand, unless the court grants them relief from the waiver, upon a showing that the party (1) has subsequently served a substantially compliant response, and (2) that the party's failure to respond was the result of mistake, inadvertence,

or excusable neglect. (Code Civ. Proc., § 2033.280, subds. (a)(1)-(2).) The court shall

grant a motion to deem admitted requests for admissions, "unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220." (Code Civ. Proc., § 2033.280, subd. (c).)

On

August 20, 2026, Defendant filed an opposition.

Defendant has now prepared and served RFA responses. (Craig Decl. ¶ 8.) However, Defendant did not include a copy of his responses, so the Court cannot determine whether they are substantially compliant.

Accordingly,
the Motion to Deem Requests for Admissions Admitted is CONTINUED to October 1, 2026
at 8:30 a.m.

Plaintiffs
are ORDERED to file a copy of the RFA responses received from Defendant and supplemental
briefing, not to exceed 5 pages, on the sufficiency of Defendant's responses. Defendant may then file a response, not to
exceed
5 pages.

Plaintiff's
supplemental briefing shall be filed no later than September 17, 2026.

Defendant's
supplemental briefing shall be filed no later than September 24, 2026.

Alternatively,
at the hearing, Plaintiffs may stipulate that the RFA responses are substantially
compliant.

Moving
party to give notice.

Parties
who intend to submit on this tentative must send an email to the Court at
indicating intention to submit. If all parties
in the case submit on the tentative ruling, no appearances before the Court are
required unless a companion hearing (for example, a Case Management Conference)
is also on calendar.

Dated this 1st day of September 2026

Hon. Thomas D. Long

Judge of the Superior
Court